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Monique Urzua v. Los Angeles Dodgers, LLC, et al.

MOTION TO COMPEL ARBITRATION

MOVING PARTY: Defendants Los Angeles Dodgers, LLC and Veronica Huerta

RESPONDING PARTY(S): Plaintiff Monique Urzua

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Monique Urzua (Plaintiff) brings this action against her former employer Los Angeles Dodgers, LLC (Dodgers) and Veronica Huerta, (Huerta, collectively, Defendants) Plaintiff alleges she was harassed and discriminated against because of her pregnancy among other causes of action. Plaintiff brings causes of action for: 1. sex and/or pregnancy discrimination; 2. sex and/or pregnancy harassment; 3. disability discrimination; 4. failure to reasonably accommodate; 5. failure to engage in the interactive process; 6. failure to provide statutory job protected leave under California's Family Right's Act ("CFRA"); 7. failure to provide statutory job protected pregnancy disability leave; 8. retaliation in violation of the FEHA; 9. failure to take all reasonable steps to prevent and/or remedy discrimination and/or retaliation; 10. wrongful termination in violation of public policy; 11. violation of Labor Code §§ 226.7 & 512; 12. violation of Labor Code §§ 2800 & -2802; 13. violation of Labor Code §§ 201-203; 14. violation of Labor Code § 558.1; and 15. unfair business practices in violation of Business and Professions Code §17200 et seq. [FN 1]

Defendants now move to compel Plaintiff to arbitrate the dispute. Plaintiff opposed.

On June 12, 2026, this matter originally came to hearing. The Court continued this matter and allowed supplemental briefings from both parties addressing the prior tentative. Both parties filed a supplemental brief, which this Court has read and considered.

TENTATIVE RULING:

Defendants' Motion to Compel Arbitration is GRANTED ONLY as to the Tenth Cause of Action for wrongful termination in violation of public policy. The remainder of this action is stayed pending the results of the arbitration.

A Status Review/OSC re: Dismissal is set for July 19, 2027, at 8:30 a.m.

Moving Parties to give notice, unless waived.

DISCUSSION:

Motion to Compel Arbitration

1. Legal Standard

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence" (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284). "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.)

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. . . ." (Code Civ. Pro. §1281.4.)

2. Objections to Evidence

Plaintiff submits objections to evidence.

This Court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication (Code Civ. Pro. § 437c, subd. (q)) or a special motion to strike (Code Civ. Pro. § 425.16, subd. (b)(2)); see also, Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-949.)

As such, this Court respectfully declines to rule on these objections. This Court is well aware of the rules of evidence, and to how much weight, if any, should be given to any of the proposed evidence.

3. Analysis

An arbitration agreement is a contractual agreement. "General contract law principles include that '[t]he basic goal of contract interpretation is to give effect to the parties' mutual intent at the time of contracting. [Citations.] ... The words of a contract are to be understood in their ordinary and popular sense." [Citations.] (Garcia v. Expert Staffing W., 73 Cal. App. 5th 408, 412-13.)

A. The Agreement to Arbitrate

Defendants have the initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (Gamboa v. Ne. Cmty. Clinic (2021) 72 Cal.App.5th 158, 165.) “[I]t is not necessary to follow the normal procedures of document authentication.” (Condee v. Longwood Mgmt. Corp. (2001) 88 Cal.App.4th 215, 218.)

Defendants argue that Plaintiff’s claims are subject to arbitration pursuant to the arbitration provision in the Collective Bargaining Agreement (CBA) between the Dodgers and the SEIU labor union which was in effect during Plaintiff’s employment. (Martens Decl. ¶7, Exh. A.) Defendants assert that Plaintiff is a member of the SEIU for which the Union was certified as the exclusive bargaining representative and the terms and conditions of Plaintiff’s employment are governed by the CBA. (Martens Decl. ¶9.) While Plaintiff objects to the Martens Declaration, Plaintiff does not appear to disagree with the factual statement that she was a member of the SEIU and therefore, a party to the CBA.

The arbitration provision contained in the CBA is titled “ARTICLE XVIII— GRIEVANCE AND ARBITRATION PROCEDURE,” which provides, in the relevant part:

(A) Grievances: Any grievance or dispute which may arise out of or in connection with the application or interpretation of the terms of this Agreement between the Employer and the Union shall be settled as follows:

(1) It is the desire of both parties to this Agreement that disputes and grievances arising hereunder involving interpretation or application of the terms of this Agreement, including any statutory or common law claims of sex, race, age, disability or other prohibited discrimination, shall be settled amicably or, if necessary, by final and binding arbitration as set forth herein.

[Procedure for Grievances]

...

(B) Arbitration:

(1) In the event the Employer and the Union cannot resolve a grievance, the party desiring to pursue the matter must demand arbitration in writing within thirty (30) days of such written filing, or waive the claim for all purposes. If the parties are unable to agree upon an arbitrator, such demand should be in the form of a request for a panel of arbitrators to the Federal Mediation and Conciliation Service (the “FMCS”). Said request should specify that the FMCS provide a panel of arbitrators, each of whom are members of the National Academy of Arbitrators. An arbitrator shall thereafter be selected by the parties striking the names of unacceptable arbitrators from said panel until one is selected.

(2) The expenses of the arbitrator shall be borne equally by the Employer and The Union.

(3) The decision of the arbitrator upon the matter submitted shall be final, conclusive, and binding upon the Employer and the Union, provided that the arbitrator shall not have the authority to change, alter, or modify any of the terms or provisions of this Agreement.

(4) Notwithstanding anything else contained in this Agreement, an arbitrator may not make any monetary award retroactive for a period exceeding seven (7) working days prior to the date the grievance or complaint was first presented in writing.

(5) All claims for wages lost because of unjust suspension or discharge shall be limited in the amount, if any, agreed to by the Employer and Union or ordered by the arbitrator if taken to arbitration; but, in any event, less any unemployment compensation and less other compensation that the grievant may have received from any source during the period for which back pay is claimed (other than compensation he or she would have received even had he or she not been suspended or discharged).

(Martens Decl. ¶7, Exh. A, at p. 29-31.)

The Court finds that Defendants have met their initial burden of proving the existence of an agreement to arbitrate that may cover Plaintiff's dispute.

B. The CBA is Not Clear and Unmistakable

At the original hearing this Court interpreted the CBA's arbitration provision as not clear and unmistakable. Defendants' supplemental briefing does not change that conclusion.

"Although ordinarily a presumption of arbitrability applies to contractual disputes arising out of a collective bargaining agreement, the presumption is not applicable to statutory violations." (Vasquez v. Superior Court (2000) 80 Cal.App.4th 430, 434 (citing Wright v. Universal Maritime Service Corp. (1998) 525 U.S. 70, 78-79).) A requirement in a collective bargaining agreement to arbitrate statutory claims "must be particularly clear" and a waiver of an employee's statutory right to a judicial forum for claims of employment discrimination must be "clear and unmistakable." (Ibid. (quoting Wright, supra, 525 U.S. at p. 79-80).) While the rule articulated in Vasquez arose in the context of statutory discrimination claims, the rule also applies where the statutory claims at issue are violations of the Labor Code. (See Vasserman v. Henry Mayo Newhall Memorial Hospital (2017) 8 Cal.App.5th 236, 250.) The test for whether a collective bargaining agreement clearly waives a judicial forum for statutory rights is whether the agreement "makes compliance with the statute a contractual commitment subject to the arbitration clause." (Vasserman, supra, 8 Cal.App.5th at p.246, quoting Vasquez, supra, 80 Cal.App.4th at p. 434.)

"Very general language regarding grievances" that does not mention specific statutes or a general "waiver of the right to seek judicial redress" is not clear and unmistakable. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 544.) "At a minimum, the agreement must specify the statutes for which claims of violation will be subject to arbitration." (Id. at p. 546.)

Here, Plaintiff's claims arising from violations of FEHA, CFRA, Labor Code, and the Business and Professions code are statutory. The CBA must contain a clear and unmistakable waiver of Plaintiff's statutory claims. The CBA however states:

It is the desire of both parties to this Agreement that disputes and grievances arising hereunder involving interpretation or application of the terms of this Agreement, including any statutory or common law claims of sex, race, age, disability or other prohibited discrimination, shall be settled amicably or, if necessary, by final and binding arbitration as set forth herein.

(Martens Decl. ¶7, Exh. A, at p. 29, emphasis added)

This clause is meant as an arbitration of disputes regarding the CBA itself, not for arbitrating disputes arising independently from other statutory violations. The language, "including any statutory or common law claim" captures claims that arise under the CBA but also overlap with statutory or common law claims. It does not appear that, by itself, is a waiver of Plaintiff's right to the judicial forum for all statutory claims. At the very least, not a clear and unmistakable waiver.

In supplemental briefing, Defendants argue that the Court's interpretation of the CBA is incorrect. Defendants cite to Article II of the CBA. This section states:

ARTICLE II - EQUAL OPPORTUNITY AND NON-DISCRIMINATION

(A) The Employer and the Union agree that the provisions of this Agreement shall apply to all Covered Employees in the bargaining unit without discrimination. In carrying out their respective obligations under this Agreement, neither party will discriminate against any Covered Employee because of such individual's Union membership, Union activity, race, color, ancestry, national origin (including primary language), citizenship, religious creed, sex (including pregnancy, childbirth, breastfeeding, and related medical conditions), marital status, domestic partnership status, sexual orientation, gender identity or expression, veteran status, military status, family care or medical leave status, age, physical or mental disability, medical condition, genetic characteristics or information, or any other basis protected by applicable federal, state, and/or local laws, regulations, rules, ordinances, and/or orders, as such are defined by applicable federal and state law.

(B) The Employer and the Union agree that, with the enactment of the Americans With Disabilities Act (the "ADA"), the California Fair Employment and Housing Act ("FEHA"), and other applicable federal, state, and/or local laws, regulations, rules, ordinances, and/or orders, the Employer may face conflicting obligations under the ADA and/or FEHA and this Agreement, as the ADA and FEHA prohibit the Employer from discriminating against any disabled person who, with or without reasonable accommodation, is qualified to perform the essential functions of a bargaining unit job. Therefore, the parties agree that, notwithstanding anything to the contrary contained in this Agreement, the Employer may make reassignments and other accommodations necessary to comply with the ADA, FEHA, and other applicable federal, state, and/or local laws, regulations, rules, ordinances, and/or orders, and such actions will not be interpreted as, or constitute, a violation of this Agreement.

(Martens Decl. ¶7, Exh. A, at pp. 2-3, italics added.)

Here, the CBA incorporates the FEHA's prohibition on discrimination as applicable to Plaintiff here. However, the Court cannot ignore that the CBA appears to make a distinction between the terms of the CBA and FEHA's protections under the law. Indeed, CBA states "the Employer may face conflicting obligations under the ADA and/or FEHA and this Agreement." (Martens Decl. ¶7, Exh. A, at p. 3) It appears that, while incorporating FEHA into this CBA, the parties acknowledged the difference in the protections afforded by the CBA and FEHA. However, nowhere does the CBA incorporate the provisions of FEHA that provide for, among other things, prohibitions on harassment and retaliation. In fact, the parties acknowledge Defendants may need to make accommodations outside the CBA to remain in compliance with FEHA. (Martens Decl. ¶7, Exh. A, at p. 3, ["Employer may make reassignments and other accommodations necessary to comply with the ADA, FEHA. . . and such actions will not be interpreted as, or constitute, a violation of this Agreement.])

Interestingly, this interpretation of the CBA appears consistent with the arbitration agreement within the CBA itself and remedies the Court's and Defendant's prior concerns about the interpretation of the scope of the arbitration agreement. Again, the CBA states:

It is the desire of both parties to this Agreement that disputes and grievances arising hereunder involving interpretation or application of the terms of this Agreement, including any statutory or common law claims of sex, race, age, disability or other prohibited discrimination, shall be settled amicably or, if necessary, by final and binding arbitration as set forth herein.

(Martens Decl. ¶7, Exh. A, at p. 29, emphasis added)

When reading these provisions together, it is clear the parties agreed to arbitrate specific discrimination claims as defined in Article II. Indeed, a common law claim for discrimination would be covered by the CBA (as discussed below). However, statutory causes of action are afforded a more strict analysis pursuant to *Wright v. Universal Maritime Service Corp.* (1998) 525 U.S. 70, (Wright).

Specifically, agreeing to waive specific claims is an insufficient agreement to arbitrate any FEHA claims. "A simple agreement not to engage in acts violative of a particular statute will not suffice; the agreement must establish the intent of the parties to

incorporate “in their entirety” the discrimination statutes. (*Brown v. ABF Freight Systems, Inc.* (4th Cir.1999) 183 F.3d at p. 322.) Compliance with a particular statute must be an express contractual commitment in the collective bargaining agreement.” (*Vasquez v. Superior Court*, supra, 80 Cal.App.4th at p. 435.) As the CBA is a prohibition on discrimination in violation of FEHA, and not an incorporation of FEHA in the entirety, the CBA does not contain a clear and unmistakable waiver of a judicial forum for Plaintiff’s statutory claims alleged in this action. As a result, the arbitration agreement within does not apply to this instant action even to the covered claims.

Further, “[c]ompliance with a particular statute must be an express contractual commitment in the collective bargaining agreement.” (*Vasquez v. Superior Court*, supra, 80 Cal.App.4th at p. 435.) Here, nowhere in the CBA does the CBA incorporate the relevant portions of the CFRA, Labor Code, or Business and Professions code at issue in this action. Where additional statutes overlap, they are done so generally and without incorporating the actual discrimination statutes. (See CBA, Article XIX, [“unpaid family care leave of absence shall be granted in accordance with applicable law.”], see also Article VI, [“The Employer shall observe any and all applicable federal and state laws regarding working conditions for Covered Employees.”]) These general overlaps are insufficient.

C. Section 301 Does Not Require Arbitration of the Entirety of this Action Independently

Next, Defendants rely on the argument that Plaintiff’s actions invoke the CBA. For example, Defendants alleged Plaintiff was terminated pursuant to Article XVII(B)(3) of the CBA which governs attendance-based termination. (Mot. at p.12.) While Plaintiff’s actions may invoke provisions of the CBA, it does not mean that Plaintiff’s asserting a dispute of the interpretation or application CBA. Instead, Plaintiff is bringing this action for statutory violations for which the CBA does not contain a clear and unmistakable waiver of a judicial forum.

In supplemental briefing, Defendants make the argument that “LMRA section 301 preemption requires arbitration of claims intertwined with interpretation of the CBA.” (Supp. Brief at pp. 2-3.) “Plaintiff’s discrimination and termination claims require interpreting Article XVII(B)(5)’s “no-call-no-show” designation criteria, Article XVII(B)(3)’s automatic termination provision, and Article II(B)’s obligation to make accommodations “necessary to comply with the ADA, FEHA, and other applicable federal, state, and/or local laws.”” (Supp. Brief at p. 3.) “Because resolving each of these claims requires interpreting specific CBA provisions, they are preempted by Section 301 and must be arbitrated. This ground alone is dispositive.” (*Ibid.*)

However, this preemption “does not extend beyond the reach of the principle rationale that justifies it, which is that arbitrators are in a better position than courts to interpret the terms of a CBA [collective bargaining agreement].” (*Wright v. Universal Maritime Service Corp.* (1998) 525 U.S. 70, 78.) The Court stated that the discrimination claim under the ADA concerned neither the application nor interpretation of the agreement, but the meaning of a federal statute, and was thus “distinct from any right conferred by the agreement.” (*Id.* at p. 79.) Because the case involved the interpretation and application of a statute, “the ultimate question for the arbitrator would be not what the parties have agreed to, but what federal law requires.” (*Ibid.*) Accordingly, for an agreement to require arbitration of a statutory claim the Court held it must be “clear and unmistakable” that the parties intended to waive a judicial forum for statutory claims. The waiver must be “explicitly stated” (*Id.* at p. 80) because “the right to a federal judicial forum is of sufficient importance to be protected against less-than-explicit union waiver in a CBA [collective bargaining agreement].” (*Ibid.*; see also *Flores v. Axxis Network & Telecommunications, Inc.* (2009) 173 Cal.App.4th 802, 806.)

Here, Plaintiff’s causes of action are rooted in violations of law, not the CBA as in *Wright*. The CBA does likely play a role in the disposition of this action as Defendants are likely to argue that Plaintiff’s termination followed the CBA. This does not create a dispute over the interpretation of the CBA but rather is a purely factual dispute over motive and intent. In fact, Defendants are not alleged to have violated the CBA at all. As discussed above, the causes of action are rooted in independent laws outside the CBA and are statutory claims. *Wright* and *Vasquez* both require this Court to ensure a clear and unmistakable waiver of statutory claims before applying the preemption in section 301. As discussed above, the CBA does not make that clear and unmistakable waiver.

D. The Tenth Cause of Action for Wrongful Termination

In supplemental briefing, Defendant argues "Plaintiff's 10th claim for wrongful termination in violation of public policy is a common law tort claim expressly covered by Article XVIII(A)(1), which reaches "any statutory or common law claims of sex, race, age, disability or other prohibited discrimination." (CBA, Art. XVIII(A)(1))" Plaintiff did not expressly address this particular argument in her supplemental brief.

In Plaintiff's tenth cause of action for wrongful termination, Plaintiff alleges, "Due to Plaintiff's protected class and/or her protected activities, as described herein, Defendant made the decision to wrongfully terminate Plaintiff." (Compl. ¶114.)

However, discrimination is a covered violation under the CBA. Wrongful termination in violation of public policy, however, is not a statutory claim. A cause of action for wrongful termination in violation of public policy is a common law claim. (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 901.) As discussed above, Plaintiff agreed to arbitrate her allegations of discrimination arising from violations of the CBA. As the common law claim is not subject to the same all or nothing waiver as statutory claims are, the tenth cause of action for wrongful termination in violation of public policy is subject to arbitration. The cause of action is directly covered in the CBA.

Further, "[t]he fact that litigation involves some nonarbitrable issues is not a basis to deny a petition to compel arbitration unless those issues involve a third party who is not contractually obligated to arbitrate." (McIsaac v. Foremost Ins. Co. Grand Rapids, Michigan (2021) 64 Cal.App.5th 418, 424.) In fact,

A trial court does not have discretion to deny arbitration under Code of Civil Procedure section 1281.2, subdivision (c), absent the presence of a third party, and a plaintiff's inclusion of a nonarbitrable cause of action in the complaint is not grounds to deny arbitration under the third-party exception. In other words, the presence of a nonarbitrable cause of action is not sufficient by itself to invoke the trial court's discretion to deny arbitration under Code of Civil Procedure section 1281.2, subdivision (c): 'The mere fact that some claims are arbitrable and some are not is surely not the "peculiar situation" meant to be addressed by [Code of Civil Procedure] section 1281.2 [, subdivision] (c)[,] according to our Supreme Court.' "

(Laswell v. AG Seal Beach, LLC (2010) 189 Cal.App.4th 1399, 1409.)

Therefore, as the tenth cause of action is an arbitrable cause of action, the tenth cause of action must be compelled to arbitration. The Court has no discretion to deny arbitration on such claims.

Accordingly, Defendants' Motion to Compel Arbitration is GRANTED as to the tenth cause of action for wrongful termination in violation of public policy only. The action is stayed pending the results of the arbitration.

IT IS SO ORDERED.

Dated: July 20, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - The Complaint's caption has a typographical error omitting wrongful termination in violation of public policy as its own independent cause of action. The Court follows the numbering of causes of action in the body of the complaint.